

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1241, As Amended

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO ANIMALS; AMENDING CHAPTER 35, TITLE 25, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 25-3514B, IDAHO CODE, TO PROVIDE FOR THE PROTECTION OF WORKING ANIMALS AND TO CLARIFY APPLICABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 35, Title 25, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 25-3514B, Idaho Code, and to read as follows:

25-3514B. PROTECTION OF WORKING ANIMALS. (1) The right to utilize working animals for the mutual benefit and welfare of working animals and the person or enterprise that the working animals serve shall be guaranteed. No county, municipality, state agency, or political subdivision shall enact or enforce any ordinance, regulation, or rule that is more restrictive than state law or that terminates, bans, effectively bans, or creates undue financial hardship for, on-the-job use of working animals or a working animal enterprise.

(2) For purposes of this section, "working animal" means any animal used for the purpose of performing a specific duty or function in commerce or service. Such term includes animals involved in hunting, entertainment, equine riding and carriage driving, transportation, education, exhibition, agritourism, ranching, livestock guardianship or herding, farming, logging, or other service or activity that has traditionally involved the utilization of working animals.

(3) This section shall not:

(a) Apply to cockfighting or dogfighting as provided for in sections 25-3506 and 25-3507, Idaho Code; or

(b) Prevent the enactment and enforcement of:

(i) A zoning ordinance properly adopted pursuant to chapter 65, title 67, Idaho Code;

(ii) An animal care law or regulation adopted pursuant to this chapter; or

(iii) An ordinance concerning public health or public safety properly adopted pursuant to Idaho Code.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.